



Landlord and Tenant (War Damage) Act (Northern Ireland) 1941

CHAPTER 9

LANDLORD AND TENANT (WAR DAMAGE) ACT (NORTHERN IRELAND) 1941

PART I

MODIFICATION OF OBLIGATIONS TO REPAIR

- 1 Relief from obligation to repair in cases of war damage.
- 2 Supplementary provisions to be implied in leases and mortgages.
- 3 Raising of money for making good war damage on settled land, etc.

PART II

DISCLAIMER AND RETENTION OF LEASES

NOTICES AFFECTING LEASEHOLDS

- 4 Power to disclaim leases or to retain on altered terms.
- 5 Period for complying with notice to elect or serving notice to avoid disclaimer.
- 6 Determination of disputes as to unfitness of premises.

NOTICES OF DISCLAIMER

- 7 Particulars to be included in notices of disclaimer, etc.
- 8 Effect of notice of disclaimer.

Changes to legislation: There are currently no known outstanding effects for the Landlord and Tenant (War Damage) Act (Northern Ireland) 1941. (See end of Document for details)

- 9 Power of court to modify effect of notice of disclaimer.

NOTICES OF RETENTION AND NOTICES TO AVOID DISCLAIMER

- 10 Effect of notice of retention.
11 Effect of notice to avoid disclaimer.
12 Recurrence of war damage after service of notice.

SPECIAL PROVISIONS AS TO LETTINGS OF PARTICULAR CLASSES

- 13 Provisions as to short tenancies.
14 Provisions as to leases comprising two or more separate tenements.
15 Power of landlord to recover possession of whole property comprised in ground lease or multiple lease.
16 Exclusion of agricultural and mining leases.

PROVISIONS AS TO APPORTIONMENT OF RENT

- 17 Apportionment of rent in case of war damage to leased premises.
Part III (ss.18#25) rep. by 1995 c. 44

PART IV

MISCELLANEOUS AND GENERAL

MISCELLANEOUS

- 26 Powers of court as to restrictive covenants in certain cases.
27 Provision as to agricultural and mining leases.
28 Relief from obligation to insure against war damage.
29 Powers of entry of landlord and tenant of damaged land.
30 Determination of disputes as to whether land has been rendered fit.
31 Provision in case where land sustains damage other than war damage.
32 Limitation on right of tenant to surrender premises under 1860 c.154.

GENERAL

- 33 Jurisdiction of the county court and appeals to the Supreme Court.
34 Provision as to notices.
35 Contracting out forbidden.
S. 36 rep. by 1995 c. 44
37 Application to the Crown.

SUPPLEMENTAL

- 38 Interpretation.
39 Short title.

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